

Rajasthan Universities' Teachers (Absorption of Temporary Teachers) Act, 2008

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State of Rajasthan - Act

Rajasthan Universities' Teachers (Absorption of Temporary Teachers) Act, 2008

RAJASTHAN

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Rajasthan Universities' Teachers (Absorption of Temporary Teachers) Act, 2008

Act 22 of 2008

Published on 1 January 2008

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Rajasthan Universities' Teachers (Absorption of Temporary Teachers) Act, 2008

(Act

No. 22 of 2008

)

[Received the assent of the Governor on the 3rd day of August, 2008]

An Act to provide for the absorption of temporary teachers of long standing, working in the Universities of Rajasthan.

Be it enacted by the Rajasthan State Legislature in the Fifty-ninth Year of the Republic of India, as follows: -

1.

Short title, extent and commencement.

(1)

This Act may be called the Rajasthan Universities' Teachers (Absorption of Temporary Teachers) Act, 2008.

(2)

It extends to the whole of the State of Rajasthan.

(3)

It shall be deemed to have come into force on and from 12.6.2008.

2.

Definitions.

(1)

In this Act, unless the subject or context otherwise, requires, -

(i)

"Department concerned" means the Department of the University concerned in which the vacancy of a teacher exists;

(ii)

"relevant law" means the Rajasthan Universities' Teachers and Officers (Selection for Appointment) Act, 1974 (Act No. 18 of 1974) and any enactment of the Rajasthan State Legislature establishing a University in Rajasthan, and it includes the Statutes, Ordinances, Regulations, by-laws, rules notifications or orders made thereunder and as amended from time to time;

(iii)

"screening committee" means a Committee appointed under the provisions of this Act to scrutinize the academic record and report (s) about the work and conduct of the temporary teachers;

(iv)

"temporary teacher" means a teacher appointed in accordance with the provisions of sub-section (3) of section 3 of the Rajasthan Universities' Teachers and Officers (Selection for Appointment) Act, 1974 (Act No. 18 of 1974) in the pay scale prescribed by the University concerned on temporary basis as stop-gap arrangement, after due public advertisement of vacancies, or a teacher appointed on part time basis and continuing in the pay scale prescribed by the universities but shall not include a teacher appointed on contract basis or those in foreign service and serving the University concerned on deputation;

(v)

"University concerned" means the University in which the temporary teachers are working; and

(vi)

"Vice-chancellor" means the Vice-chancellor of the University concerned, and includes any person who for the time being performs the functions of the Vice-chancellor of the University concerned according to the relevant law.

(2)

All other expressions used but not defined in this Act shall have the meaning respectively assigned to them under the relevant law.

3.

Substantive appointment of temporary teachers.

- All temporary teachers continuing as such at the commencement of this Act shall be considered by the University concerned for their absorption and substantive appointment on the recommendation of the Screening Committee constituted under section 4, subject to their, fulfilling the condition of eligibility, including minimum qualification, prescribed by the University concerned under the relevant law and subject to the availability of substantive vacancies of teachers in the Department concerned.

4.

Constitution of Screening Committee.

- The Screening Committee shall consist of the following, namely: -

(i)

Vice-chancellor of the University concerned who shall be Chairperson of the Committee;

(ii)

Dean of the faculty concerned;

(iii)

the Head of Department concerned of the University concerned;

(iv)

the senior most Professor/Reader of the Department, if he is not the Head of Department;

(v)

one expert, not connected with the University concerned and having special knowledge in the subject in which the teacher is to be screened, to be nominated by the Vice-chancellor of the University concerned out of a panel of names recommended by the Academic Council of such University;

(vi)

one member to be nominated by the Chancellor;

(vii)

an eminent educationist to be nominated by the State Government; and

(viii)

one member of the Syndicate/Board of Management to be nominated by the State Government.

5.

Appointment to be under the Act No. 18 of 1974.

- The teachers appointed to the substantive posts in pursuance of the provisions of this Act shall be deemed to have been appointed under the provisions of the Rajasthan Universities' Teachers and Officers (Selection for Appointment) Act, 1974 (Act No. 18 of 1974).

6.

Last date for making appointments.

- No appointment in pursuance to the provisions of this Act shall be made after the expiry of 180 days from the date of the commencement of this Act.

7.

Termination of the services of temporary teachers not substantively appointed.

- The services of a temporary teacher, who is considered for substantive appointment under Secs. 3 and 4 but is not substantively appointed on or before the expiry of 180 days from the date of the commencement of this Act, shall stand terminated on the date of such expiry.

8.

The Act to have overriding effect.

- The provision of this Act shall have overriding effect notwithstanding anything contained in the relevant law.

9.

Repeal and Savings.

(1)

The Rajasthan Universities' Teachers (Absorption of Temporary Teachers) Ordinance, 2008 (Ordinance No. 3 of 2008) is hereby repealed.

(2)

Notwithstanding such repeal, all things done, actions taken or orders made under the said Ordinance shall be deemed to have been, taken or made under this Act.

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